

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
JOSE MALDONADO,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE KYLE FLOOD,
Shield No. 6020, DETECTIVE JAMES T. SIMPSON, Shield
No. 2444, DETECTIVE JAMES CAUSA, Shield No. 1852,
DETECTIVE PAUL ZAINO, Tax No. 926336,
LIEUTENANT DAVID CAMHI, Tax No. 939965,
DETECTIVE VICTOR DEFENSE, Shield No. 1120,
DETECTIVE DANIEL RIVERA, Tax No. 927418,
UNDERCOVER POLICE OFFICER NUMBER C0368, and
POLICE OFFICERS JOHN DOES #s 1-4 (names and
number of whom are unknown at present),

Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Bronx
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 22, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
DETECTIVE KYLE FLOOD, Shield No. 6020, Narcotics Borough Bronx
DETECTIVE JAMES T. SIMPSON, Shield No. 2444, Narcotics Borough Bronx
DETECTIVE JAMES CAUSA, Shield No. 1852, Narcotics Borough Bronx,
DETECTIVE PAUL ZAINO, Tax No. 926336, Narcotics Borough Bronx
LIEUTENANT DAVID CAMHI, Tax No. 939965, Narcotics Borough Bronx
DETECTIVE VICTOR DEFENSE, Shield No. 1120, Narcotics Borough Bronx
DETECTIVE DANIEL RIVERA, Tax No. 927418, Narcotics Borough Bronx
UNDERCOVER POLICE OFFICER NUMBER C0368, Narcotics Borough Bronx

SUPREME COURT OF THE STATE OF NEW YORK
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INDEX NO.:**VERIFIED COMPLAINT**THE CITY OF NEW YORK, DETECTIVE KYLE
FLOOD, Shield No. 6020, DETECTIVE JAMES T.
SIMPSON, Shield No. 2444, DETECTIVE JAMES
CAUSA, Shield No. 1852, DETECTIVE PAUL ZAINO,
Tax No. 926336, LIEUTENANT DAVID CAMHI, Tax
No. 939965, DETECTIVE VICTOR DEFENSE, Shield
No. 1120, DETECTIVE DANIEL RIVERA, Tax No.
927418, UNDERCOVER POLICE OFFICER NUMBER
C0368, and POLICE OFFICERS JOHN DOES #s 1-4
(names and number of whom are unknown at present),**JURY TRIAL DEMANDED**Defendants.
----- X

Plaintiff JOSE MALDONADO, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on November 21, 2019, at approximately 11:00 pm he was lawfully present in the vicinity of 1060 Sherman avenue, Bronx, NY when the individually named defendant NYPD officers, unlawfully stopped, questioned, frisked, searched, assaulted, battered, falsely arrested and subjected plaintiff to the use of excessive force, without probable cause or legal justification. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the police officers possess objective facts to believe plaintiff violated the law or committed a crime. Prior to being arrested a female approached plaintiff and asked him for change and he handed her change. The female who asked plaintiff for change allegedly sold a controlled substance to an undercover police officer. At no time relevant herein did the defendant observe plaintiff exchange any illegal drugs with the woman or anyone else. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff. Nevertheless, the officers unlawfully approached, searched, handcuffed, assaulted, and battered, and falsely

arrested plaintiff, without probable cause or legal justification. The officers transported plaintiff, against his will, to the 44th precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff. On November 22, 2019, plaintiff was transported to Bronx Central Booking, whereat the unlawful detention continued for many additional hours. The officers provided the Bronx District Attorney's Office with false, misleading, and incomplete information and evidence that allegedly formed their basis for arresting plaintiff and charging him with crimes. Plaintiff was maliciously prosecuted and arraigned in Bronx criminal court on November 22, 2019, at approximately 11:00 p.m. and charged with crimes he did not commit and for which the officers lacked probable cause to accuse him of committing, including criminal possession of a controlled substance in the third and seventh degrees. Plaintiff was released from custody on his own recognizance at arraignment. He was required to appear in criminal court on approximately 12 occasions before all charges were dismissed and sealed in their entirety on January 28, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to Due Process/ Right to a Fair Trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff JOSE MALDONADO is a resident of the state of New York.
3. Defendant DETECTIVE KYLE FLOOD, Shield No. 6020, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE KYLE FLOOD, Shield No. 6020, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx command.
5. Defendant DETECTIVE KYLE FLOOD, Shield No. 6020, is being sued in his individual and official capacity.
6. Defendant DETECTIVE JAMES T. SIMPSON, Shield No. 2444, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant DETECTIVE JAMES T. SIMPSON, Shield No. 2444, was at all times relevant herein, assigned to the Narcotics Borough Bronx command.
8. Defendant DETECTIVE JAMES T. SIMPSON, Shield No. 2444, is being sued in his individual and official capacity.
9. Defendant DETECTIVE JAMES CAUSA, Shield No. 1852, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE JAMES CAUSA, Shield No. 1852, was at all times relevant herein, assigned to the Narcotics Borough Bronx command.

11. Defendant DETECTIVE JAMES CAUSA, Shield No. 1852, is being sued in his individual and official capacity.

12. Defendant DETECTIVE PAUL ZAINO, Tax No. 926336, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE PAUL ZAINO, Tax No. 926336, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx command.

14. Defendant DETECTIVE PAUL ZAINO, Tax No. 926336, is being sued in his individual and official capacity.

15. Defendant LIEUTENANT DAVID CAMHI, Tax No. 939965, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant LIEUTENANT DAVID CAMHI, Tax No. 939965, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Command.

17. Defendant LIEUTENANT DAVID CAMHI, Tax No. 939965, is being sued in his individual and official capacity

18. Defendant DETECTIVE VICTOR DEFENSE, Shield No. 1120, was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant DETECTIVE VICTOR DEFENSE, Shield No. 1120, was at all times relevant herein, assigned to the Narcotics Borough Bronx Command.

20. Defendant DETECTIVE VICTOR DEFENSE, Shield No. 1120, is being sued in his individual and official capacity.

21. Defendant DETECTIVE DANIEL RIVERA, Tax No. 927418, was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant DETECTIVE DANIEL RIVERA, Tax No. 927418, was at all times relevant herein, assigned to the Narcotics Borough Bronx Command.

23. Defendant DETECTIVE DANIEL RIVERA, Tax No. 927418, is being sued in his individual and official capacity.

24. Defendant UNDERCOVER POLICE OFFICER NUMBER C0368, was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant UNDERCOVER POLICE OFFICER NUMBER C0368, was at all times relevant herein, assigned to the Narcotics Borough Bronx Command.

26. Defendant UNDERCOVER POLICE OFFICER NUMBER C0368, is being sued in his individual and official capacity.

27. Defendants New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

28. Defendants New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

31. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

33. On November 21, 2019, at approximately 11:00 pm plaintiff was lawfully present at work in a store located in the vicinity of 1060 Sherman Avenue, Bronx, NY when the individually named defendant NYPD officers, unlawfully stopped, questioned, frisked, searched, assaulted, battered, falsely arrested, and subjected plaintiff to the use of excessive force, without probable cause or legal justification.

34. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the police officers possess objective facts to believe plaintiff violated the law or committed a crime.

35. Before plaintiff was arrested, a female approached plaintiff while he was working in a store, and she asked plaintiff for change for a bill.

36. Plaintiff took the bill from the woman and handed her change.

37. The female who asked plaintiff for change allegedly sold a controlled substance to an undercover police officer after she asked plaintiff for the change.

38. At no time relevant herein did the defendants observe plaintiff exchange a controlled substance with the woman or anyone else.

39. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff.

40. Nevertheless, the defendant officers approached plaintiff while he was at work and unlawfully searched, handcuffed, assaulted, and battered, and falsely arrested plaintiff, without probable cause or legal justification.

41. The defendant officers threw plaintiff to the ground, handcuffed plaintiff, and kicked and punched claimant while he was on the ground, without cause or legal justification.

42. The officers caused plaintiff to suffer lacerations and bruises all over his body when they punched and kicked him and subjected plaintiff to the use of excessive force.

43. Defendants transported plaintiff, against his will, to the 44th precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

44. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff.

45. At no time relevant herein did the defendant police officers possess reasonable suspicion or probable cause to believe plaintiff committed a crime or violate the law.

46. On November 22, 2019, plaintiff was transported to Bronx Central Booking, whereat the unlawful detention continued for many additional hours.

47. The officers provided the Bronx District Attorney's Office with false, misleading, and incomplete information and evidence that allegedly formed their basis for arresting plaintiff and charging him with crimes.

48. Plaintiff was maliciously prosecuted and arraigned in Bronx criminal court on November 22, 2019, at approximately 11:00 p.m. and charged with crimes he did not commit and for which the officers lacked probable cause to accuse him of committing.

49. The officers falsely charged plaintiff Criminal Possession of a Controlled Substance in the Third and Seventh degrees without probable cause or legal justification and based upon allegations that were fabricated by the defendants

50. Plaintiff was released from custody on his own recognizance at arraignment.

51. Plaintiff was required to appear in criminal court on approximately 12 occasions before all charges terminated in plaintiff's favor and were dismissed and sealed in their entirety on January 28, 2021, after the Court granted a motion to dismiss the charges.

52. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

53. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

54. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

55. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

56. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

57. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

58. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

59. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

60. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

61. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to Due Process/ Right to a Fair Trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

62. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

69. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

71. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

75. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

77. Defendants lacked probable cause to search plaintiff.

78. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Malicious Prosecution

86. Plaintiff repeats and realleges paragraphs 1 through 85 as if fully set forth herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

88. Defendants commenced and continued a criminal proceeding against plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

90. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

93. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 92 with the same force and effect as if fully set forth herein.

94. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

95. Defendants filled out false and misleading police reports and a summons and forwarded them to the Bronx County Criminal Court.

96. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

97. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. The use of excessive force by defendants by throwing plaintiff to the ground and repeatedly punching and kicking plaintiff while he was laying on the ground handcuffed was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

101. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological, and economic injuries.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

105. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

106. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

107. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

108. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

109. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any

consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

110. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

111. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

112. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

113. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

114. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jose Maldonado demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 22, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
November 22, 2022

David Hazan

DAVID M. HAZAN